8/2/23 - National Grid, NY - 23-G-0225/23-G-0226

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a National Grid NY for Gas Service.

CASE 23-G-0226 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service.

PUBLIC STATEMENT HEARING

DATE: August 2, 2023 at 1:01 p.m.

VENUE: WebEx

BEFORE: A.L.J. MAUREEN LEARY

A.L.J. JAMES COSTELLO

Reported by Anthony McClain

8/2/23 - National Grid, NY - 23-G-0225/23-G-0226

(The hearing commenced at 1:00 p.m.)

A.L.J. COSTELLO: Good afternoon. Just want to make sure everybody can hear me.

MR. WHITE: Hi, I can hear you.

THE REPORTER: We are on the record.

A.L.J. COSTELLO: Thank you. I call case number 23-G-0225 proceeding on motion of the commission as to the rates, charges, rules and regulations of the Brooklyn Union Gas Company, doing business as National Grid New York for gas service. And case number 23-G-0226 proceeding on motion of the commission as to the rates, charges, rules and regulations of KeySpan Gas East Corporation, doing business as National Grid for gas service. We are here today for a public statement hearing that was noticed on June 30th, 2023. It involves a filing by the Brooklyn Union Gas Company, which does business as National Grid, New York, and which I will refer to as KEDNY and KeySpan Gas East Corporation, doing business as National Grid, which I shall call KEDLI, and which I will collectively refer to as the Company. They filed amendments to their gas tariff schedules on April 28th, 2023, proposing to increase

their annual gas delivery revenues effective March 31st, 2024.

KEDNY proposes to increase its revenues by 414 million, which represents a 28 percent increase in base delivery revenues or 17 percent increase in total revenues. KEDLI proposes to increase its revenues by $228 million, which represents a 24 percent increase in face delivery revenues or a 14 percent increase in total revenues. Although the actual bill impacts of those proposed changes on any particular customer class will vary based upon the revenue allocation and rate design, the company states that a typical KEDNY residential heating company customer will have a $30.95 average monthly bill increase. And that a typical KEDLI residential heating customer will have a $28.52 average monthly bill increase.

Under New York State law the Public Service Commission must consider the utilities proposals and may adopt or reject them in whole or in part or modify them. We are holding this hearing so you can provide your comments on these proposals for the commission's consideration. My name is James Costello and I'm an Administrative Law Judge with

Department of Public Service. With me here today is Administrative Law Judge Maureen Leary, also with the Department of Public Service. And together we are responsible for presiding over the hearings in these cases and the development of a complete record in these proceedings. So I'm going to go over a little bit about the Public Service Commission and then I'll go over the process that we're going to follow.

So, as I said earlier, the Public Service Commission will decide what the company's terms and conditions of service will be. The Public Service Commission has seven members, the chairperson, Rory Christian, and six commissioners who are Diane Berman, James Alessi, Tracy Edwards, John Howard, David Valeski, and John Maggiore. I see that we have the chair Christian on the line with us, and I would like to offer him the opportunity to make a statement to people that are attending today.

MR. CHRISTIAN: Thank you Judge Costello, appreciate you setting the frame, and I want to say thank everyone who's with us today, who's taking time out of their busy schedules to join about and talk about this very important proceeding. I know your time is precious, and I know this topic is

of great importance to all. And these opportunities for public engagement are opportunities to inform, educate, and empower. And I appreciate you all coming here today to participate. Now, the topics we're going to discuss this afternoon will become part of the public record, and ultimately, they'll help form the basis of decisions made by the commission. So I want to again reiterate, we are here to listen, we want to hear your comments and incorporate that feedback into our decision-making process. And I appreciate you all making the time and look forward to a healthy discussion. Thank you all. Mr. Costello.

A.L.J. COSTELLO: Thank you, Chair Christian. So I'm going to go on now and explain the process that we're going to follow at today's hearing. So as I stated and as the chair just explained, this is -- hearing is to provide you with an opportunity to tell the commission your thoughts on the Company's rate proposals and the statements that you make today will become part of -- of the case record. We have a court reporter who is joining us and will prepare a transcript of the hearing, which will be included in the official record of

these proceedings so that your comments can be considered by the commission. When it -- it's ready the transcript will be available for view on the Department of Public Service website, and you would access those by searching under the case numbers for these cases, which are 23-G-0225 and 23-G-0226.

The hearing that we're having today is not an evidentiary hearing and it is not a question-and-answer session. It is an opportunity for you to provide comments for the commission's consideration. It also is not the only opportunity that you would have to make comments. If you did not pre-register to speak at today's hearing, but you would like your views included in the record, there are a variety of other ways to comment that were listed in the public notice for today's event, and that are -- if we can change the screen that we have up to show the different methods that statements can be submitted. Well, I can tell you that you can -- it’s now other ways to comment. If you are participating electronically, they're listed in front of you and they are you can make comments on the department's website.

You can do them -- submit comments by

email, regular mail, or by telephone. And regardless of how the comments are submitted, they are given equal consideration. Now, we have requested that comments be submitted by August 4th, 2023. That is a request simply to ensure that the parties who are preparing their testimony in these cases have the opportunity to consider your comments when they are preparing their testimony. Even though we request it by August 4th, we accept comments and the comments will be considered throughout the pendency of these cases. So as long as the cases are pending, you can submit comments for consideration. If you have registered to make a statement today and you have a lengthy written statement prepared, we ask that you would submit both the written statement to the commission in one of the methods I told you, and that you provide a summary of your statements orally.

Okay. We have people today who have registered and who are participating electronically, and there are people who have registered electronically and may be participating by telephone. In either case, you should have only one audio input from one device, otherwise you and we may experience problems with feedback. I will call the persons that

have pre-registered to speak one-by-one, and I will also notify the person who will be up next to speak so that they'll be ready to speak when we get to them. If someone is not available when I call them or if they're having technical difficulties, I will continue with the next person and we'll come back to the people who were not able to comment who were not available. I'll come back to them at the end. For telephone participants, when I call out your name, I will ask that you hit star three on your telephone so that we can recognize you and unmute your line.

It may take a little while for us to locate you and unmute your line, so please make sure to wait until you hear a beep or are notified that your line has been unmuted before you speak. If you have muted your own telephone, you must remember to also have your telephone unmuted on your end so that we can hear you. For people that have registered electronically, after I call your name, we will unmute your line. You should hear a tone and see that the microphone icon is no longer showing red next to your name. And again, please be reminded that if you have your line or your audio input on mute, you will have to unmute it on your end as well

so that we can hear you. We ask that you please speak slowly and clearly so that the court reporter can accurately capture your statement for the record.

And when your line is unmuted, we ask that you state your name, and if you are speaking on behalf of an organization, the name of the organization. Once we confirm that we can hear you, you can then proceed to make your comments. So with that, we're going to start with our speakers and we have as our first speaker, Hennessy Garcia. And the person that will be following Hennessy Garcia will be Ryan Stanton. So if Hennessy Garcia is participating by telephone, we ask that you hit star three so that we can recognize you and unmute your line. I am not seeing anyone, so I'm going to move on to Ryan Stanton. Ryan Stanton, and that also if you are participating by telephone -- oh, I see that you are actually participating electronically. It looks like your line has been unmuted. No, just bear with us.

MR. STANTON: I -- can you hear me?

A.L.J. COSTELLO: Okay. Yes, we can hear you now.

MR. STANTON: Good afternoon. My name is Ryan Stanton, I'm speaking on behalf of the Long

Island Federation of Labor as the executive director representing this organization and our two hundred and fifty thousand union members and their families across Nassau and Suffolk County. I'd like to say thank you to the Public Service Commission for its thoughtful consideration of case 23-G-0225, case 23-G-0226 National Grid. On behalf of our members who represent not only a significant swath of National Grid's rate payers but also the thousands of members and their families who work for not just National Grid, but the utility companies and their contractors we urge you to approve the rate case. The Union movement has played an active role in advancing the Climate Community Leadership and Protection Act working people who, by virtue of living on Long Island, are on the front lines of climate change and dealing with the impacts of this generational crisis.

The main replacement program in particular, which is supported by the rate increase, is consistent with New York State -- state emission of reducing carbon emissions. They’re necessary investments to bridge our region into the future as New York State begins to bring green energy assets online and improves our grid energy efficiency. We

know that through sound common sense investments in main replacement, we're achieving a more environmentally friendly energy infrastructure preparing it to service hard to electrify industries for the future. Old steel pipes leak over time are replacing damaged infrastructure that in some cases have begun to leak with modern high-density plastic. We're ensuring rate payers throughout the region continue to receive safe, reliable service. National Grid will play a part in a more energy efficient grid, and we can make investments today that will only become more expensive tomorrow.

This rate case not only ensures public safety and quality and reliable service for rate payers, it supports career opportunities for working families in our communities. And unfortunately, we've seen a lack of funding and underfunding of critical infrastructure not only in our region, but in this country. One example in our region wastewater infrastructure, and it's created an environmental crisis that, you know, we have yet to address. Fortunately, we have a regulatory agency in the Public Service Commission that's in a position to ensure that politics doesn't get in the way of good

public policy that we consider the issue before us and continue to make sound infrastructure investments to necessary utilities.

We can't afford to underfund our utility infrastructure and not only results in neighbors losing their jobs, you know, whether it's our brothers and sisters who operate and maintain the system but would also impact those in the construction trades that execute capital improvement projects that guarantee and ensure that our system continues to operate and operate safely.

So again, please consider our comments and -- and the impact that this decision has on the future of our region and how it can really help New York State achieve its goals outlined in the Climate Community Leadership and Protection Act. Thank you.

A.L.J. COSTELLO: Thank you. So our next speaker will be Sara Reed to be followed by Helene Unserud, and I apologize if I mispronounce anyone's name, I do my best. But we -- Sara Reed will be next and followed by Helene Unserud. Can we please unmute Sara Reed? She's participating electronically. Okay. It looks like your line has been unmuted.

MS. REED: Hi. Thank you. Can you -- you can hear me now?

A.L.J. COSTELLO: Yes, I can. Thank you.

MS. REED: Okay, great. My name is Sara Orleans Reed. I'm a resident of Brooklyn and I'm a rate payer. I'm one of the countless New Yorkers who's ready to stop padding National Grid's profit by ensuring the expansion and longevity of their fossil fuel infrastructure. I -- I want to thank the PSC for holding this hearing. I do know that the PSC did not give a very long notice period in advance of this hearing. The public process only works if adequate outreach -- reach, and information is presented to us, and we have time to do our research and build our understanding of the issue. It's also important for democratic processes and for the legitimacy of this body that it's not seen as favoring one entity over the public in rate cases and other decisions and late notice can give this -- this impression.

Finally, I feel that the millions of New Yorkers who care deeply about the climate crisis, who are scared of the future and are already fed up

with breathing hot, toxic air this summer, deserve to be heard in rate cases. Like many New Yorkers, I have family and friends who live in parts of the world where the heat has been unfathomable this summer. They've described it as like living in a sauna. I'm tired of wondering whether this is the day that my parents-in-law who’re both in -- in poor health will lose electricity and no longer power their AC or whether my friend's mom will recover from heat stroke. And like all of you, I'm fed up with checking the AQI to -- to weigh whether or not it'll be safe to go outside today. This is our reality now. The climate crisis is not getting better, but we don't have to keep spending our own money to make it worse. National Grid is asking to spend four billion dollars on fossil fuel infrastructure.

I'm asking you to reject the rate hike proposed by National Grid, which would also cost rate payers about $30 more per month by March 2024 at a time when gas prices are already at an all-time high. By 2019, nearly 20 percent of families in New York were already energy burdened, according to the Mayor's Office of Sustainability. The fund for the city of New York found that in 2023, 50 percent of

working age New Yorkers do not earn enough to keep an apartment, access sufficient food and healthcare and pay for transportation. This is up from thirty-six percent in 2021, we're in a crisis. At a time like this, it would be a strange public policy decision by the PSC and governor to prioritize the revenue of the private UK based company, which already reports 300 million in profit over New Yorkers by allowing National Grid to raise its rates.

It's an even more flawed policy decision when you consider that the infrastructure they are expanding and increasing the longevity of is what's causing the unfathomable -- unfathomable heat waves and toxic air pollution locally. It's so flawed that it should be against the law, and it is. The Department of Environment has rejected on several occasions proposals to extend gas infrastructure on the grounds that doing so would be in violation of the Climate Leadership and Community Protection Act. Because the D -- DEP honored our climate law, the proposed site of the Astoria NRG Fracked Gas Plan is now slated to become a site for storage and distribution of clean offshore wind. The PSC has also been an important critic of National Grid’s

Request for Public do -- dollars most recently voting to reject National Grid's request for 70 million in public money to construct LNG vaporizers in North Brooklyn after finding that the proposed vaporizers were not needed. National Grid has a history of misrepresenting the need for their proposed projects with regard to energy needs. So I do ask the Public Service Commission to review their reque -- request with due scrutiny. Thank you very much for hearing my comments.

A.L.J. COSTELLO: Thank you. Our next speaker will be Helene or Helene Unserud, followed by Samuel Chu. So please unmute Helene Unserud. Okay. It looks like you have been unmuted.

MS. USERUD: Thank you. Good afternoon. My name is Helene Unserud. I'm a member of the new North Brooklyn Pipeline Alliance, and I'm a resident of Brooklyn. The last IPCC report was sobering and alarming. We are barely on course to meet the target agreed upon in the Paris Accord. So I am concerned that governments in general are often operating as if business was as usual when we need to move as if we are on the edge of a climate disaster, which we are. Fortunately as New Yorkers, we passed

the Climate Leadership and Community Protection Act in 2019 that sets targets getting rid of green -- greenhouse gas emissions effectively. But in order for us to reach those targets, we must invest in renewable rather than gas infrastructures.

For myself and the people I love, maintaining safety and reliability at this juncture of the climate crisis needs transitioning as quickly as possible away from fossil fuels. As a responsible homeowner, my priority is to replace gas with renewable zero emission technologies, including heat pumps, induction stoves, and electric appliances as soon as I can financially possibly do it. Having to pay for gas, more for gas, will only make it more difficult for me to do this. So this means that to reach my own goal, as well as for the sake of the world's environment, I have to reject National Grid's proposal to spend nearly four billion dollars in the next four years on fracked gas infrastructure. I vote no to extending the life of fracked gas infrastructure reinforcements in a number of localities in New York and Long Island during a climate and health crisis.

I vote no on extending the life of

fracked gas pipelines through National Grid's Leak Prone Pipes program, and I vote no on extending the life of the Greenpoint Energy Center when we should be retiring this facility, building thermal energy networks and expanding energy efficiency. I respectfully ask the Public Service Commission to deny National Grid its request for any rate increase. Thank you very much for your attention to my testimony.

A.L.J. COSTELLO: Thank you. Our next speaker will be Samuel Chu, followed by Cliff Fonstein.

MR. CHU: Hello.

A.L.J. COSTELLO: Yes, we can hear you. You may make your statement.

MR. CHU: Well, I thank you to the commission for the opportunity to make comments on this matter. My name is Sammy Chu (phonetic spelling), Long Island, basically.

A.L.J. COSTELLO: Mr. Chu, you seem to be breaking up a bit.

MR. CHU: Hold on one second. Can you hear me? Can you hear me?

A.L.J. COSTELLO: I can hear you.

Let's see how -- how it goes when you -- when you start again.

MR. CHU: My name is Sammy Chu. I am CEO of Edgewise Energy, a Long Island based clean energy development company. I have been involved with the clean energy and sustainable -- sustainability movement and I have a benefit of that 20 years of perspective ... as an entrepreneur ...

A.L.J. COSTELLO: Again, Mr. Chu, I'm sorry. I'm sorry to interrupt you, but again, you are breaking up. I don't know if you can do something to make the connection --

MR. CHU: I'm going to change my -- I'm going to change my ... Better now?

A.L.J. COSTELLO: You have to -- you have to talk so we can hear you. But as you're talking, sometimes it breaks up, but so you can continue.

MR. CHU: Okay. National Grid has been a regional leader in advancing clean energy generation, transmission and infrastructure. As a developer and policy advocate, they can attest to the importance that National Grid will play in our transition away from fossil fuels. But this

transition will not happen overnight, and it is not simple. The investments that National Grid is making in renewables, you know, particularly making renewable natural gas and hydrogen infrastructure as well as their enormous investments in wind will be there to ensure the success of this transition. I worked along National Grid historically when New York had set policy goals to -- for energy efficiency as a -- as an administrator for the first property says Clean Energy program in the country at the town of Babylon.

And when I was chief of staff for Suffolk County, I worked alongside National Grid as we all recovered from the aftermath of Sandy. National Grid has been there, and I am having every bit of confidence that they'll be there for this transition. I support this proposal for the -- for the, for I support National Grid's proposal for these rate cases. Thank you.

A.L.J. COSTELLO: Thank you. Our next speaker will be Cliff Fonstein followed by Judith Canepa.

MR. FONSTEIN: Cliff Fonstein. I'm a member of RAC-New York, a faith-based organization

engaged in social justice advocacy. We are the social justice arm of Reform Judaism in New York State with 99 synagogues and 150,000 congregants.

A.L.J. COSTELLO: And could I just ask you, I'm sorry. Just so we have it for the record, could you spell the name of the organization?

MR. FONSTEIN: Yes, it's RAC the Religious Action Center hyphen New York.

A.L.J. COSTELLO: Okay, thank you.

MR. FONSTEIN: But -- but I am here however, as a -- as a private citizen and a concerned rate payer. During the past two years, my colleagues and I have worked hard to advocate for climate legislation, calling, writing, and meeting with legislators all across the state. We fought hard for this legislation because our tradition teaches us that we have to -- we have a responsibility to look after the earth and to preserve it for future generations. In a nutshell, we care deeply about the important work you do and are doing with respect to this rate case. I want to make three very brief points. One, as a utility monopoly National Grid is supposed to provide New Yorkers with energy that's in compliance with state law and policy. However, what

National Grid is proposing is contrary to state policy and law. I refer you to the 2019 Climate Act in the just finalized scoping plan.

A good example of how National Grid's proposals thwart New York State's Law and Policy is the close to one half billion dollars that's to go to extending the life of the Greenpoint Energy Center. It's a decrepit and aging facility that we should be retiring and, in its place, building a thermal energy network and expanding energy efficiency. National Grid should not be, quote, unquote, fixing old eroding and costly infrastructure that will last a number of years at the precise same time we are required to be moving to other sources of energy other than fracked gas. Point two, rate payers should not have to pay for National Grid's misleading lobbying campaigns and the campaign donations it's doled out to benefit its own private interests, but not those of its rate payers. For example, National Grid send partisan and inappropriate emails to its customers opposing climate legislation in a sense, in essence, using its rate payers as a captive audience.

Why should rate payers have to pay for National Grid's misleading campaign to defeat

necessary climate legislation? It is no answer that the rate payer money is segregated from campaign money. Even if that were true, all National Grid money is fungible. Point three, I urge you to be careful in investigating what National Grid says. There's already a perception that these rate decisions are pro forma and that the decision making is done in a back room and is hidden. The timing of this hearing is a perfect example. There was only one week between the announcement of the public hearing and the hearing dates, making it seem as if someone wanted to rush through and hide the decision making. I urge you to be careful and act with appropriate circumspection when investigating National Grid's claims. Do not, for example, take at face value any arguments that National Grid's proposals are necessary for safety and reliability. Be appropriately suspicious. Thank you for your time, and please be careful.

A.L.J. COSTELLO: Thank you. Our next speaker will be Judith Canepa, followed by Mary Finneran. And if you are calling in, please hit star three so we can identify you. Okay. We have a call-in user. It looks like you have been unmuted.

MS. CANEPA: I did unmute it. Have you -- can you hear me?

A.L.J. COSTELLO: Yes, we can.

MS. CANEPA: Great. Okay. My name is Judith Canepa and I'm a Rockaway Outreach Coordinator for Sane Energy Project. I -- I live in Manhattan, but I work in Brooklyn, Staten Island, Queens. I'm an advocate for the disabled and I've seen the misery that these heat waves have been causing the clients I work with. I do thank you for this opportunity to testify today. And I want to applaud the Public Service Commission for Heating your own contracted independent consultant during National Grid’s bid recently to construct completely unnecessary vaporizers at their giant facility by the perch, by the Superfund site, Newtown Creek in a disadvantaged community sitting on top of the largest underground oil spill in the country. In fact, almost all of these pro -- proposed quote enhancement and the safety projects of National Grid affect those New Yorkers among us who are already dealing with the most terrible environmental justice burdens and calling miles and miles of pipes leak prone instead of just the ones that are truly leak prone, instead

of replacing them with real jobs to create geothermal and thermal energy networks.

Four billion dollars no, three billion dollars no, two no, no, no money for this -- this terrible climate killing plan. It's so clear to most of us, almost everybody, that the grave instability of our climate is roaring forward at an accelerated speed. Everything that was familiar is being shaken and pulled out from under us. We've all choked through the orange skies, the fires across the border that sent toxic smoke all over the Northeast, not just our city, which suffered the worst -- worst of it. We saw the devastation a climate powered superstorm can cause over and over again, Sandy, Irene, Ida. Last month, rainfalls as bad as along the Hudson as records shattering monsoons in India and biblical floods in Pakistan.

These things will not be seen as freak events by our children and their children. They will laugh bitterly that their forbearers called these things one-hundred-year storms. It's really hard to face this. We have to, as the ex-vice President, Al Gore, said, as Bill McKibben from 350 warns us, as my colleagues at Sane Energy work so hard, as the body

of reputable scientists at the end of the IPCC and the Secretary General of the UN and the Pope. They're urgently calling we must stop the build out of fossil fuel infrastructure. Our lives are at stake. We cannot move in a careful measured pace. That luxury is denied to us. National Grid cynically greedily asks us to finance our own destruction and that of all that we hold so dear, our loved ones and the beautiful world that they've known and the world we want to pass on to them. Please deny National Grid this egregious and greedy request and thank you very much.

A.L.J. COSTELLO: Thank you. Our next speaker will be Mary Finneran, followed by Mimi Bluestone. So Mary Finneran, if you are participating by telephone, please hit star three so that we can identify you and unmute your line. Okay. I am not seeing anyone, so we will move on to Mimi Bluestone. Please unmute. She is participating electronically. It looks like your line has been unmuted.

THE REPORTER: No, not yet. Let's see. Yeah.

A.L.J. COSTELLO: I was going to --

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can you unmute Mimi Bluestone, please?

MS. BLUESTONE: Hello?

A.L.J. COSTELLO: Hello.

MS. BLUESTONE: Oh, you can hear me? Great. Thank you. Hi, my name is Mimi Bluestone. I live in Brooklyn, and I thank you for this opportunity to express my total opposition to National Grid's demand to raise utility rates. Allowing this to happen would unfairly burden rate payers, would help finance the further expansion of natural gas use at a time when we can't afford to do that and would extend our -- in our dependence on fossil fuels. Given the extreme heat, flooding, and smoke we've all experienced this summer, it's impossible to ignore our need to move away from fossil fuels as quickly as possible. Raising rates by seventeen percent as National Grid seeks to do, would be a severe hardship for many New Yorkers already stretched thin by the staggering cost of housing in our area.

A company that reaped 301,000,000 in profits in the New York jurisdiction and 190 plus million in the Long Island jurisdiction last year hardly needs a rate hike to do its job, which

includes maintaining its infrastructure. But let's take a step back further. Extending New York's natural gas infrastructure is not a valid goal in light of our climate crisis, and in light of the fact that we are moving toward reduced -- reduced dependence on gas as we meet the goals of the commu -- the Climate Leadership and Community Protection Act, the CLCPA. We need to retire this infrastructure as quickly as possible.

July and June of this year were the hottest months worldwide ever. We are facing not global warming, but global burning. The only way to slow this process is to stop burning fossil fuels, whose emissions are bringing us this disaster. Instead of contributing to this ongoing catastrophe, National Grid could be part of the solution if instead of extending the life of fossil fuel infrastructure, it decided to use its great resources to face the inevitable and offer alternatives to fossil fuels. For example, National Grid has expertise in drilling and building pipes. That could be part of building heat pump systems, including geothermal pumps. National Grid insults our intelligence by claiming that raising rates to

maintain gas infrastructure is required to help New York meet the requirements of the state's Climate Leadership and Community Protection Act.

If anything, National Grid's stated reasons for this requested rate high count, the intent of the law, which is to speed the transition away from dependence on fossil fuels. Almost 70 percent of New York City's greenhouse gas emissions come from buildings, mostly because the building stocks depend on fossil fuels for heating, cooling, cooking, energy. The city has passed legislation to reduce these emissions from buildings, which will require phasing out the use of gas as fully as possible. So why raise rates to extend dependence on gas when the city is requiring us to move in the other direction. Beyond the climate factor there are other crucial public health reasons to transition away from fossil fuels. Burning gas causes air pollution that causes illness and death, especially in otherwise disadvantaged communities.

I taught for years in a public Brooklyn High School, and I saw the impact of severe respiratory illness on many of my students whose attendance and academic success were undermined by

these illnesses. The climate crisis affected our school community deeply in 2012 when Superstorm Sandy displaced many students and staff, and one of our beloved alumna died tragically in the storm. I want the students I taught and all of our children to have the best possible chance to lead healthy and satisfying lives. This -- this is looking less and less possible as the climate catastrophe gallops on. So it means doing everything we can as fast as we can to confront the climate crisis. The time for alliance on natural gas and other fossil fuels is over. Energy efficiency, renewable energy, improved battery storage, this is what a livable future demands. Granting National Grid its requested rate hike would hurt our wallets near term and damage our lives going forward forever. I urge you to deny this request and I thank you for this opportunity.

A.L.J. COSTELLO: Thank you. Our next speaker will be Dina Rabiner, followed by Randy Peers. So I see Dina Rabiner is participating electronically. It looks like your line has been unmuted.

MS. RABINER: Yes. So I'll be speaking -- Randy Peers. It's -- I'll be speaking.

Randy Peers will not be speaking since we're from the same organization.

A.L.J. COSTELLO: Okay, so just let me just Delia Kulukundas, and I apologize if I mispronounced that, will be the next speaker then. Okay. I'm sorry to interrupt you. Go ahead.

MS. RABINER: Good afternoon. My name is Dina Rabiner and I am the VP of Economic Development and Strategic Partnerships at the Brooklyn Chamber of Commerce. The Brooklyn Chamber of Commerce is a borough wide membership and economic development organization dedicated to helping businesses through our four channels, promotion, support, advocacy, convening, and the Brooklyn Chamber and its affiliate Organizations of Brooklyn Alliance and Brooklyn Alliance Capital provide direct business services, technical assistance and -- and support programs to help Brooklyn businesses grow. The Brooklyn Chamber of Commerce is here to support National Grid's commitment to building an affordable, reliable, clean energy system that meet New York's climate change goals.

National Grid is a critical partner to the Brooklyn business community. Access to reliable

and affordable energy is essential for robust, dynamic, and vibrant economy, and it could not be more critical to the economic health of New York City. National Grid's deep understanding of the commitment to the communities they serve enables them to provide the tailored support businesses need to thrive, particularly small businesses in our disadvantaged communities. Across the Brooklyn business sector National Grid actively supports business owners through initiatives such as economic development grants, workforce development programs. And they administer weatherization and energy efficiency programs that allow businesses to lower their emissions and decrease their demand for energy. All these initiatives are helping to meet New York state's very ambitious climate goals. National Grid's employees also consistently collaborate with our local businesses to tailor their services to businesses' unique needs.

This support empowers local business leaders to focus on expanding their ventures, creating jobs, and contributing to the community’s economy. Access to these re -- resources plays a crucial role in fostering sustainable business growth

and expansion and enabling owners to have confidence in these vital services. National Grid's community investments extend far beyond providing their customers with gas and electric. From promoting energy conservation to implementing eco-friendly initiatives and supporting local organizations. National Grid continues to make needed investments to advance social equity and -- and social justice initiatives across the borough. Over the last year, National Grid has supported the Brooklyn Chamber of Commerce -- Commerce's efforts to promote clean energy and sustainability through its support of our Energy Summit as well as being an active member of our Minority Women Business Enterprise Committee dedicated to promoting MWBE opportunities across New York City.

New York has -- as you know, New York has the most ambitious climate goals in the country, and they will not be met without our support and the expertise of National Grid. In closing, we support the proposed national grid rate increase as they seek the resources they need to continue providing these critical services while building the clean energy infrastructure necessary to meet New York's climate

goals. Thank you.

A.L.J. COSTELLO: Thank you. Our next speaker will be Deliah Lidelia Kulukundas, followed by Jimmy Jack. So please unmute. It looks like we have a person first name Deliah -- or Delia who is participating electronically. Okay. Your phone has been, or your line has been unmuted.

MS. KULUKUNDAS: Can you hear me?

A.L.J. COSTELLO: We can hear you, yes.

MS. KULUKUNDAS: Great. My name is Delia Kulukundas and I'm a volunteer with the Grassroots Climate Group 350 Brooklyn. I'm here to urge the Public Service Commission to fully reject National Grid's proposal to raise gas delivery rates. National Grid wants to replace leak prone pipe, which means any pipe that carries gas, but they're not doing this in order to comply with the CLCPA, our climate law, though they are trying to blame the rate increase on the climate law. They're doing it because right now they are a gas utility and that means that gas is their product and that gas that leaks is gas that they cannot sell. If they want to replace those pipes and continue to sell gas, they

can do it with their sizable profits, but they do not need to raise customer rates to -- to do it. Instead, climate -- National Grid wants to raise rates to avoid complying with the climate plan, which requires a substantial reduction of natural gas use and the strategic downsizing of the gas system.

National Grid actively lobbies to undermine our climate law by using customer funds to finance lobbying and the spread of dis -- disinformation, including membership in front groups like New Yorkers for Affordable Energy. National Grid right now has a chance to stay in business by becoming a non-gas utility, but at the moment, they're blowing that chance. The Utility Thermal Energy Network and Jobs Act of 2022 open the door to utilities to become providers of thermal services through neighborhood scale heat pump networks. But currently National Grid is doing a careless and incomplete job with their legally mandated pilot project in Brooklyn, in what appears to be a deliberate effort to sabotage the idea of thermal energy networks. By contrast, the utility called Eversource in Massachusetts is doing an excellent job with their first thermal energy network pilot, and

they should be a source of inspiration to National Grid.

In the meantime, it's up to the PSC to hold National Grid accountable. Please reject this rate hike and require that National Grid actually comply with the CLCPA by transitioning into a thermal utility and direct National Grid to develop a plan to decommission its gas system. The PSC must also require National Grid to comply with earlier proceedings that required the cessation of gas marketing and penalize National Grid for its improper use of customer funds for lobbying and misinformation and return those funds to low-income rate payers. Thank you for this opportunity to give comment.

A.L.J. COSTELLO: Thank you. Our next speaker will be Jimmy Jack followed by Kyle Strober.

MR. JACK: Hi there

A.L.J. COSTELLO: Looks like -- hi.

MR. JACK: Okay, I'm Jimmy Jack. I'm the CEO of Habitat for Humanity of all of Long Island. And thank you National Grid for your support and -- over the years. I just want to share how we're so grateful for all National Grid has done and helped and supported our mission of building homes of

hope, making dreams come true. National Grid is an incredible part and are supporting our community through projects like the tree donations through our building of new homes. There -- you have been on our board over the years, key leaders from National Grid has been, have been on our board over the years. Three times a year National Grid teams come out on our teams build to help us build houses. And National Grid's team doesn't just work in our community, they are our neighbors. Their kids go to school with our kids.

They shop at our small businesses and most important, they give back and work hard to improve the community for everyone. Beyond National Grid's impact in our business sector, they have been a longtime supporter of non-for-profits in Nassau and Suffolk County. Through donations, sponsorships, and volunteer efforts, they have demonstrated a genuine commitment to making this a better place for everyone. National Grid's Generosity has helped local organizations and small businesses thrive, and we are thrilled to have them in our community. I'm genuinely impressed with National Grid's dedication to sustainability and keeping energy affordable for

individual customers. It is not just a talking point. They are tireless in their efforts to work with every household they support.

During the pandemic they put extra programs in place to support customers who are unable to pay their bills and have in fact increased these programs in the past years. Me personally, my wife and I were one of them, so I thank you for that. The programs to help families of businesses save energy have saved money from many of my neighbors and made our community more environmentally friendly. Their hands-on support and customized energy efficiency solutions have enabled us to do our part to address global warming. National Grid's presence in our community, support of local families and contributions to nonprofits demonstrates their commitment to being a consistent and positive corporate citizen in Suffolk and Nassau Counties. I believe I speak for everyone when I say we appreciate the contributions they have made and look forward to working with them to continue to build a stronger, more sustainable community. All -- all in said, we trust National Grid in the decision, the vision they have to make our community better. God bless you and

thank you again National Grid for your support of Habitat for Humanity of Long Island.

A.L.J. COSTELLO: Thank you. Our next speaker will be Kyle Strober followed by Fred Harrison. I believe your line has been unmuted.

MR. STROBER: Can you hear me now?

A.L.J. COSTELLO: Yes.

MR. STROBER: All right. Well, first off, I want to thank you. My name is Kyle Strober. I'm the Association for Better Long Island Executive Director, and more importantly, I'm a rate payer. I live in Merrick in the town of Hempstead. And first I -- I -- I want to commend this commission. You know, hearing a rate case is a very important process and you have to be mindful of the rate payers while it's -- while reviewing this case. With that being said, you know, where I sit at ABLI, the cost of doing business has gone up in the economic development construction world, and it's not surprising to see the cost for National Grid have gone up to do business as well. And having a reliable natural gas here in the region is critical to our economic development. You know, there are thousands of projects that my members have done with

National Grid.

They have been a tremendous partner, and without them, a lot of projects would not come to fruition. And we thank them from that and it's important to recognize that they are a good corporate citizen here on Long Island. I -- I want to second Jimmy Jack's comments before me. I think he said it really well about their participation within the community. And -- and that's all. I just -- I think it's important to recognize them as a good corporate citizen here in the region and a vital component of our economic development. Thank you.

A.L.J. COSTELLO: Thank you. Our next speaker will be Fred Harrison to be followed by Eric Alexander. Mr. Harrison, if you are participating by telephone, please hit star three so that we can identify you and unmute your line. I am not seeing anyone, so we will go on to Eric Alexander and we will follow up with Justin Rogers.

MR. ALEXANDER: Hi guys. Can you hear me?

A.L.J. COSTELLO: Yes, we can hear you.

MR. ALEXANDER: Sure. Hey. Okay.

Thank. Eric Alexander. I'm the Director of Vision Long Island. We're a downtown planning organization for the last 25 years, and also the founder of Long Island Main Street Alliance and represents 45 downtowns that we work with. And I want to thank PSC for holding this hearing, getting the public input that's needed. And it's interesting hearing the comments from our friends in the city and friends on Long Island here. Of course, maybe some different feedback, but let, let's just try to get to it. Organization, we've been supportive of renewable energy. We've been supportive of conversions from oil to natural gas that -- that actually has reduced greenhouse gas emissions.

For 13 years we've been lobbying in New York state and Federal level, to get more subsidies for wind, solar, other renewables. We support energy efficiency programs and we support the -- the New York State climate goals. So I just want to state that out right. But clearly we don't -- we're not experts on rates as an organization. We know nothing about what their exact right rate is. It's complicated, but there's inflation in everything. And that's what our people tell us that,

you know, that's a challenge out there for folks. But as far as their natural gas bill, either for heating or -- or -- or for -- for -- for stoves or whatever, that's the lowest of their bills, even with the rate increase. Electric heat pumps are more, oil costs more you know, geothermal is -- is incredibly expensive to get in, and only really wealthy people can get to that right now.

Biogas isn't -- isn't there yet. So in this era where we need transition, we need natural gas on the island. So you know, I mean, just gas prices just to move your car around the island is -- is up 25 percent. So it's not a shock that there'd be, you know, need to increase rates. That's, you know, certainly our understanding. National Grid is a community partner, we've seen them everywhere, honestly, whether it be energy conferences, small business support door-to-door, infrastructure investment, you know, even getting their volunteers and their staff out for community gardens, for women's empowerment, workforce training, human services, housing support. We're going to be doing something with the Pink Tide Foundation delivering food. You know, I've done this multiple years now,

and we see them, you know, I'm out in 45 downtowns that have revitalization plans for housing and helping small businesses and transit-oriented developmental stuff we try to do.

I see that National Grid -- National Grid staff out and they're not just like interns, right? These are real people follow through who support local communities. So I -- I have to say compared to other corporations on Long Island, we're always supporting corporate philanthropy and presence. These guys go over and above what they need to do. And, you know, we are -- we're -- we're thrilled that they do this. You know, it's a handful on Long Island, do a great job and do a lot. National Grid's right there. Some do their fair share and a lot of corporations are AWOL, completely AWOL. We saw these guys come through with Sandy. We see them regularly. They're supportive of ... initiative very diverse staff. And -- and -- you know, so I give them A-plus on community service. I really can't speak to rates, but I'm not -- not shocked that this, that -- that -- that rates go up.

Everything's going up. Inflation is brutal for everyone. I'm sure our New York City

friends as well as folks across Long Island. And that's a broader trend that's not just something tied to this utility. So, you know, I -- I -- I'd say in the end, you know, this company is doing what, you know, and look, I really respect PSC going through that process, you know, dotter every I, cross every T, look into everything. But you know, it -- it -- it certainly makes sense that rates are going to increase and we certainly need natural gas as a transition fuel. And we're really aware of their thoughtfulness in transitioning and we see them everywhere and we see them out in the community. They're a great community partner. So that's about it. Thank you.

A.L.J. COSTELLO: Okay. Thank you. Our next speaker will be Justin Rogers to be followed by Dunston Bradley. And it looks like we have Pat Robinson on behalf of Justin Rogers participating electronically. Okay. It looks like your line has been unmuted.

MS. ROBINSON: Assuming you can hear me. Yes?

A.L.J. COSTELLO: We can hear you. You're coming across very low.

MS. ROBINSON: Oh, that's interesting. Okay. Is that any better?

A.L.J. COSTELLO: Yes.

MS. ROBINSON: Okay. Good afternoon. My name is Patricia Robinson, Chief Administrative Officer, standing in on behalf of Justin Rogers, the president and CEO of Greater Jamaica Development Corporation. Greater Jamaica is in its fifty-sixth year of service to downtown Jamaica and Southeast Queens community, and has worked with National Grid over many years on projects and programs which benefit our community. They are committed to partnering with organizations like ours, which seek to improve the quality for the life of the people that we serve. It's especially noteworthy to say that National Grid is the type of partner that actively pro -- proactively works with us and looks for opportunities to help achieve our goals.

For example, we just opened up a year ago, a twenty thousand square foot co-working space in downtown Jamaica. This unique facility allows it --allows emerging entrepreneurs, especially MWBEs, to conduct business in modern affordable office space with flexible lease terms and the art of technology.

National Grid worked with us to fit this program into their clean tech incubation grant program, and we received critical funding from them to make sure that this project was a reality. National Grid also approached us two years ago about their Project C community grant program and how we might use that funding to allow our small businesses to have easier access to our free suite of technical assistance and lending. That funding not only enabled us to create that assistance and access, but also allowed us to completely redo our internal website, which holds as a major through line for our initiatives.

In addition, we led a collaboration of five community organizations, each of whom received significant funding to complete important projects. So there are many examples of National Grid's commitment to our community. Suffice to say their interest is in our community is longstanding and backed up by actions. Thank you.

A.L.J. COSTELLO: Thank you. Our next speaker will be Dustan Bradley to be followed by Monique Fitzgerald. Mr. Bradley, if you are participating by telephone, please hit star three so that we can identify you and unmute your line. Okay.

I am not seeing anyone. So we're going on to Monique Fitzgerald and to be followed by Lisa Tyson. Okay. Your line has been unmuted.

MS. FITZGERALD: Good afternoon. Again, my name is Monique Fitzgerald. Pronouns she and her. I'm the Climate Justice organizer at the Long Island Progressive Coalition. I am joined --.

A.L.J. COSTELLO: Can I just ask you to spell the organization just so we have it for the record. I'm sorry to interrupt you.

MS. FITZGERALD: No problem. Long Island Progressive. So Long Island, Progressive, P-R-O-G-R-E-S-S-I-V-E Coalition, C-O-A-L-I-T-I-O-N.

A.L.J. COSTELLO: Okay. Thank you.

MS. FITZGERALD: You are welcome. So, I am calling in from the Unseeded ancestral land of the Chu Nation, otherwise known and occupied by Patchogue. First I -- I want to express my frustration with this process. I did speak yesterday but I -- I do have a little bit more to say. But this process was poor -- poorly done. We were notified through -- at least I got this notification through the local newspaper Newsday on Long Island. And if I didn't have the money to pay for a Newsday

subscription, I would not have known about it. And this gives us -- or gives me and the public least less opportunity to know about what's going on. And then the fact that this public notice came out on July 25th also gives us a -- a low amount of time to organize our own thoughts and notify our neighbors, friends, families, and allies about this rate increase, which is detrimental to many of our lives, especially here on Long Island, where we're seeing a lot of people moving off of Long Island because they just simply cannot afford rent or groceries and not nevertheless an increase on their utility bills.

This is also a strange time for National Grid to increase rates when statewide, we just got in the budget two hundred million dollars to relieve debt from utility costs. So on the one hand, our state is saying that we need to put money into relieving debt, and then we have National Grid and all of its corporate greed asking for more money to -- to line their pockets and not the -- the rate payers. And ultimately the rate payers are the ones who will have to pay this cost as well. I'm also frustrated because we, on Long Island -- we are on the front lines of this climate chaos, right? And

National Grid is one of the bad actors in that climate chaos. National grid utilizes fracked gas. They have -- they power their power plants with this frack -- fracked gas. They have this -- the pipelines that are leaking, that they are asking for more money to fix, when in fact we are supposed to be moving away from this kind of climate chaos with the passage of the CLCPA in 2019 to reduce our emissions.

So we have a mandate to do that and not a mandate to continue to line the pockets of the National Grid Shareholders. We will never meet that mandate if we continue to use fracked gas from National Grid's -- the way that National Grid has been utilizing fracked gas to power plants and deliver energy to our -- our homes. So we are moving in the wrong direction if we continue down this path of supporting National Grid. We are also feeding into the health costs that having gas in our atmosphere the -- the leaky pipes that are contributing to things like asthma in communities such as Wyndance, Bellport and Brentwood, where we see high rates of asthma ER visits, the highest in Suffolk County in these areas that are designated as disadvantaged communities. The last thing we need is

to put more resources into National Grid.

Also the way in which our pay -- our rate structure is set up. The people who make the least amount of money pay the most amount of their income to National Grid. And this is a structure that is not sustainable for our communities that are already suffering and oppressed by many other institutions in this country. Our homes are oftentimes deteriorating and rapid rates. We are unable to keep our homes energy efficient and we need to put resources and money into the people's homes and households who need it, instead of corporations who are unable and who have not shown that they have been able to help our communities keep our utilities and our energy efficient and also maintain them through hardships such as financial hardships. And when we are facing financial hardships, these corporations, such as National Grid, seek to turn off our utilities.

And that's something that we need to move away from the structure where people who are unable to pay are seen as people who are unwilling to pay instead of seen as people who are oppressed and need to be supported in our, with our PSC and the --

the State agencies that are supposed to protect us. So again, we need to stop supporting National Grid and support the public. We need to reject this rate hike and protect our people. We also need to reject using fracked gas and move to follow the mandate of the CLCPA and move to other energy sources. We also must to -- must start to decommission power plants and leaky pipes instead of trying to put more money into them to either fix them or to create new ones. We need to make sure that our communities have a chance to breath clean air and not suffer from things such as asthma that I mentioned before.

I also say the PSSC must reject -- reject this regressive rate structure and develop a rate structure that achieves equity by getting rid of things that are unnecessary, such as shutoffs, unnecessary late -- late charges on your -- on your bill when you're already struggling to pay. And we need to see that in communities that are identified as disadvantaged and low- and moderate-income households. We need to end the -- the corporate greed of National Grid and the corporate welfare of National Grid and reject their idea of their need for assistance when they are not the ones in need. It's

the people who are struggling to pay the rates. So I'll leave it there. There's more, much more to say, but that is all for now. Thank you.

A.L.J COSTELLO: Our next speaker will be Lisa Tyson to be followed by Hennessy Garcia. Okay. Please unmute Lisa Tyson. Okay. It looks like your line has been unmuted.

MS. TYSON: Thank you. My name is Lisa Tyson, again, executive Director of the Long Island Progressive Coalition. And I'm just going to start off by saying maybe it would be helpful if you could tell the list of people who are going to be speaking so people know before, you know, sometime ahead of time. It would've been really helpful if I would've known where --where I was in the queue. I don't know if that's out there, but I do not have a copy of that. So Long Island Progressive Coalition, we worked with many organizations, statewide, environment -- environmental justice groups, farmers, groups in the city, Long Island on creating the CLCPA. And ever since the National Grid has been trying to -- to save themselves because ultimately fracked gas is on its way out, and that is their whole market, that is their job. That's what they

do.

And ever since we passed that bill, they have been strategizing how to stop this from happening. And so they have this whole plan, which is really a false solution. And, you know, really making sure that gas has a very long history. But what is the history on Long Island with National Grid not too long ago? So National Grid basically they had a moratorium. They said no more gas. We -- we have to build a pipeline, so we want to build a pipeline. They had plans, they had a lot of money in it. And so they decided to stop giving people gas hookups, just a moratorium. They had to pay $36 million in penalties. So I find it amazing people are saying they're a good partner. That wasn't a good partner. I go to the Roosevelt Field Mall. It's an empty mall because of National Grid because the food co -- food co -- court could never get up and going.

So this idea that they are a good corporate partner on Long Island is incorrect. Now how are they a corporate partner? They are very good at doling out money to charities, and that's great and somewhat important, but is that something rate payers should actually pay for? Because they do a

lot of it. And when we hear who are testifying at these hearings, I think you should check to who got money from National Grid because we see them approaching groups, offering them money, and then having them tout their policies, their false solutions about fracked gas. It has to stop the lobbying against us, against they're using our -- our money to lobby against the community, to lobby false solutions that will ultimately kill people from asthma and from the -- from the external impacts of climate change that some communities feel more than others. And so environmental justice communities, disadvantaged communities, they are struggling right now.

This idea that a rate hike of $30 per month means nothing. It's like nothing, it's a small part of your bill, is totally incorrect. The amount of shutoffs, utility shutoffs, for electric and gas. Yeah, gas might be an easy one to pay because their PSE & G bill is four hundred dollars and we're paying, you know, for corporate partnership there as well. And so we are -- we have to remove the corporate greed out of these policies. I really hope the commission digs deep to lobbying. Look at all

the money they're doling out to save themselves. They don't need that money. They don't need us as rate payers to continue to do that. So we are really calling you to be bold and to have a zero-rate increase.

They should be reducing our rates. We want them gone. Gas -- fracked gas is gone. And it's time for the PSE to recognize the impact of the CLCPA and to -- to finally move it forward. Thank you.

A.L.J COSTELLO: Thank you. Our next speaker is Hennessy Garcia. Please unmute the line for Hennessy Garcia.

MS. GARCIA: Hi, can everyone hear me?

A.L.J COSTELLO: Yes, we can hear you.

MS. GARCIA: Okay. So, hi, I'm Hennessy Garcia. I'm here on the behalf of sixth Street Community Center. I'm in coalitions such as New Yorker News, Public Power New York, and No North Brooklyn Pipeline Alliance. As a member of Gen-Z, I am quite tired of my generation asking nicely, so today I am not here to ask nicely. I'm here to give it to you straight. So first off, I notice how people who spoke in support of National Grid made no

mention at all of the numerous crises going on. Also, to those people, they kept mentioning, oh yeah, we get money from National Grid. Well, also, that money actually comes from us, so, by the way, you're welcome. I live in Queens and in multiple places in Queens National Grid wants to spend over $400 million in extending the life of fracked gas structures.

I reject this -- this is my home and my community. If anyone gave a damn about communities of color and low-income communities, you would know that this proposal by National Grid is not one for the people. I would like to bring everyone into the reality that 30 -- that a $30 increase in utility bills is too much. I know someone earlier said that, oh, it's natural because it's inflation. That is not the point. The point is, it's too much for other people. We need to have consideration for low-income folks, especially if they are of color. The worth of $30 is the difference of someone being able to feed someone or get their groceries. With school starting $30 can be used to get someone's school supplies. You want to increase New Yorkers bills when we are in a housing crisis. You want to increase New Yorkers bills during a climate crisis.

None of this is fair. This state could not even properly address when the sky was orange and when we literally had the highest air quality in the world on June 6th and June 7th. I do ask the PSC to listen to the people and to please comply with the demands listed in the Climate Leadership and Community Protection Act. Thank you.

A.L.J COSTELLO: Thank you. I called a few people earlier who were not available. I'm just going to call them once more. Mary Finneren, if you are calling in, please hit star three so that we can identify you and unmute your line. Okay. And then we'll go on to Fred Harrison. Fred Harrison, if you have called in, please hit star three, not seeing anyone. Then we have Dunston Bradley, Dunston Bradley, if you have called in, please hit star three so we can identify you. Okay. I do not see anyone and we've come to now to the end of the list of people who have registered. So what I'm going to do now is open this up for people who did not register and who would like to make a statement. So if you are calling in, you would hit star three so that we can identify you. And if you are participating electronically, you would hit the raised hand

function, which should be at the bottom of your screen.

MR. WHITE: Hey, Judge Joe -- Joe White here. I don't mean to interrupt.

A.L.J COSTELLO: That's okay.

MR. WHITE: We have a problem with connectivity. So I stepped in as host. I just want to let you know that when you were calling the names of the people that you -- that you were going back, circling back to Elkins --Willis Elkins' hand was went up. So I'm wondering if maybe they're using somebody else's line.

A.L.J COSTELLO: Yeah. So that's the first hand that's up right now. So that's --.

MR. WHITE: Yes, that's it. Okay. Thank you.

A.L.J COSTELLO: Okay. Your line has been unmuted.

MR. ELKINS: Great. Thank you. My name is Willis Elkins. I'm the executive director of the Newtown Creek Alliance for a community-based organization located in Greenpoint, Brooklyn. And I'd like to share a couple of comments about this proposed rate increase specifically to some of the

other testimonies that we've heard today and the idea of National Grid being a fantastic community partner. One, I would -- I would like to believe that the commission that the -- the process, the point of this process is not to do character references and evaluations specifically by organizations that have a direct financial relationship with this company that's seeking hundreds of millions of dollars in rate increases.

However, if that is swaying the commission, I would like to provide my own experience, someone who's lived in the community for over 15 years and run a non-profit here for 10 years and sat on the community board for a number of years as well as to how National Grid's relationship in our community has transpired. So let's talk about the Greenpoint Energy Center, a 110-acre facility located almost directly in the middle of New York City, in East Williamsburg, Brooklyn. This facility located, by the way, just one block from Public Housing Cooper Park Houses is -- is a disaster. It's a complete mess. We talk -- other people are talking about, you know, how National Grid, their commitment to the community, their commitment to clean energy. Let's

talk a little bit about the details of the -- of the Greenpoint Energy Center here, highly contaminated.

Previous operations of the National Grid facility have left significant amounts of contamination in both the local soils and waters. According to the State and DEC, the site is contaminated by the following chemicals of concern, light hydrocarbons such as benzene, toluene, ethylbenzene and xylene. Semi volatile organics notably; PAHs or Polycyclic aro -- Aromatic Hydrocarbons, PCBs in the groundwater, manufactured plant waste in the form of non-aqueous phase liquid or ... below the groundwater table. Prior to 2012, there were over 11 separate environmental investigations at the site relating to potential underground plumes, groundwater contamination, and subsurface and surface soil contamination from previous operations and demolitions of structures, which, by the way, National Grid has full liability and ownership of.

The company suspended use of a baseball field that was located on their site following a 2010 investigation of the area. And interim remedial measures were overseen by DEC in

2005, 2006, 2007. As of 2023, National Grid is still removing contaminated soil from the site. And DEC is still reviewing after many, many years draft versions of remedial investigation for the site. So, you know, I just want to make the point clear that their actual investment in our community has been to maintain a highly, highly polluted contaminated site. Located again, what just one block from public housing and within a mile of hundreds of thousands of other residents. Additionally, next to this facility is the Newtown Creek. The company is one of the original potentially responsible parties, the EPA led Superfund investigation of Newtown Creek, wherein data collected shows that sediments off the shore of the facility.

The area known as the Turning Basin in Newtown Creek, are some of the most contaminated in the entire Superfund site, specifically for PAHs. Remnants of the coal tar that were processed in this facility still bubble up to the surface waters of the turning basin during low tide events, presenting immediate health risks to humans and wildlife alike. And it's unclear how contamination may be currently migrating from the upland facility into the waterway

to this day. In short, this facility is a major environmental burden for the community. There's no ... cleanup plan in place yet for the facility itself or the adjacent waterway that their previous operations have poisoned.

We -- we oppose this rate increase until National Grid puts in place any plan that's going to thoroughly remediate and transition this 110-acre facility into a true asset for the community and the environment. That's part one. Part two is about, we've heard a lot of other testimonies talk about National Grid's commitment to clean energy and even specifically renewable natural gas or RNG and its mission in this rate case RNG, the Newtown Creek Wastewater Treatment plant that's run by the city. So I work directly across the street from the wastewater treatment plant. And this project was supposed to be completed in January of 2016. Over seven and a half years ago, the city and National Grid had a ribbon cutting event just last month. And I hate to inform you, but as of this morning, the actual flares, they're not supposed to be running, are still flaring gas.

So this project is not complete.

They've spent, you know, untold millions of dollars and -- and been increasing emissions in the local airs. And it's really important to understand this. It's not just about collecting the natural gas from the treatment plant; this whole project is about adding extra material. So because of National Grid's failure to successfully implement this project, and the fact that they're seven and a half years behind schedule has meant that there's increased emissions, methane being burned every single day because of their failure. So it's not even that they failed to capture the existing gas, they've actually contributed to more climate change impacts because of that failure. So I just want to share these as like two specific examples. I would say there's much more we could talk about

The North Brooklyn pipeline I won't spend everyone's time on that because there's -- hopefully you're very familiar with this, you know, pipeline that was basically installed underneath the noses of primarily black and brown communities in Brooklyn exposing them to natural gas, radioactive fracked material in their backyards. So I just want to present this as an alternative view to what we've

heard so far about National Grid as a character reference and as an organization, we're strongly opposed to this rate case and hope that the commission will also do the same. Thank you.

A.L.J COSTELLO: Thank you. Please unmute call-in user eight. Okay. Your line has been unmuted. Please state and spell your name for the record and proceed to give your statement. Hello, we cannot hear you. No, we're going to have to move on then. Please unmute Jerome Bost.

MR. BOST: Yes, can you hear me?

A.L.J COSTELLO: Yes, we can.

MR. BOST: Hi. Good afternoon. Public Service Commission. My name is Jerome Bost. I'm the Director of External Affairs for IBW 1049. We represent approximately 4,500 members and among them are individuals employed with National Grid. I'm reaching out to you today on behalf of our business manager Patrick Dese, who sends his apology for not being able to participate, who is the middle of PSED -- PSEG negotiations at the present. So I have a prepared statement from Business Manager Patrick Dese. On behalf of the 4,500 members of IBEW Local 1049, I'm proud to express our strong support

for National Grid. Our members build and maintain the electric and gas infrastructure that power and heat homes in businesses across Long Island and Queens.

Many of them work for National Grid or in the company's projects. These experiences have always been positive and my own personal experience confirms that National Grid is an outstanding corporate citizen that treats its employees well and serves Long Island and Queens with honor and integrity. Skilled labor is the backbone of New York's energy industry. National Grid understands this and has been a partner of unions providing thousands of livable wage careers and now working with us to ensure our members have opportunities in the rapidly expanding green economy. Achieving New York's clean energy goals will require building, operating, and maintaining a massive amount of new infrastructure from solar and wind farms to battery storage facilities to miles of new power lines. Our members are on the front lines of this energy transition, putting their skills to work in communities across Long Island and Queens.

We work every day to maintain our gas

network to eliminate methane emissions and prepare our systems to deploy innovative renewable energy solutions like thermal energy networks, renewable natural gas, and green hydrogen -- hydrogen. These initiatives must be funded properly to ensure their success. The future of energy transition relies upon National Grid is a crucial partner in this work. Their workforce development programs help our members develop the skills they need for new roles in their growing clean energy sector. And they are working with major project developers and local experts to develop a talent pipeline for individuals interested in careers in clean energy. During last year's legislative session, National Grid stood with labor in support of the Clean Slate pact fighting with us to ensure an old conviction did not stand in the way of someone building a productive career in the energy industry.

National Grid's bold leadership and practice and policy demonstrates their commitment to building a truly diverse clean workforce. Over many years of working with National Grid, I have been consistently impressed by their full duty. Often businesses make high profile diversity and inclusion

commitments, but never do the work to meet their goals. Not National Grid, they truly value they values their programs, and we are seeing the positive results. As the voice of 4,500 energy industry workers across Long Island, Queens, I'm prophecy that National Grid is a valued corporate citizen that supports workers and communities across the state. We must ensure they have resources necessary to continue investing all Long Island's clean energy future and building the skills energy workforce we need to meet New York's climate change goals. Sincerely, Patrick Dese Business Manager, IBEW Local 1049. Thank you so much for your time.

A.L.J COSTELLO: Thank you. Okay, we'll try call-in user eight again please. Okay. Please unmute call-in user eight. Okay. Looks like the line has been unmuted. Okay. If you have mute on your end, you would have to unmute that so that we can hear you. Right now we cannot hear you and if you're having technical difficulties I'm going to give you a number so you can call. You would not be able to -- it's not going to help you with this hearing, but we are also holding another hearing at 6:00 p.m.

MR. WHITE: I think they're unmuted Judge Costello.

A.L.J COSTELLO: Yeah, but I didn't hear them.

MR. WHITE: Oh -- oh, I'm sorry.

A.L.J COSTELLO: Do you hear them? Okay, so it's 1-800-342-3330. I'm sorry that we cannot take your statement at this time, but we cannot hear you. So we'll go on to Benjamin Kuebrick, please unmute Benjamin Kuebrick.

MR. KUEBRICK: Hi, this is Ben Kuebrick.

A.L.J COSTELLO: Hi. We can hear you. Yes, I can hear your statement.

MR. KUEBRICK: This is Ben Kubrick with Alliance Fair Green Economy and thanks so much for the opportunity to make this public comment. And with my comment, I just want to talk briefly about the charity washing of Monopoly Utility Corporations, which we're seeing here on this call. I didn't have time while on the call to look back for the last rate order for National Grid, but I know that a recent rate case, the NYSEG RGE rate case has one million dollars for rock, the river-way building -- which is

building a public plaza. This is rate payer money going to something that doesn't have anything to do with reliability or safety and energy service. And I think that the call today is a good demonstration of what these companies get in return for this charity washing. And I think that the DPS staff and the commission need to look really hard at this.

Customers paying millions so that a corporation gets to be called a quote, good corporate citizen is absurd. And anything like this should be disallowed with rate payer money. And to be clear, I'm not in here to say anything critical of the various nonprofits work and I understand their need to get funding. What I'm taking issue with is the public relations tactic of using rate payer funds to bolster utility corporation's public image. We shouldn't be doing that. Customers should not be paying for that, and the commission should take note and disallow it. Thank you for taking my comment.

A.L.J COSTELLO: Thank you. Okay. It looks like we've come to the end of our speakers. So I would like to once again remind everyone on the line that you may submit public comments throughout these proceedings by various other means that I

discussed earlier and that are also described in the notice of public statement hearings that was issued by the Secretary to the Commission on June 30th, 2023. Also, I want to let you know that there will be another public statement hearing this evening at 6:00 p.m. and we will be holding in-person public statement hearings in the future. The dates for those have not yet been set, but a notice will be issued when they are. And at this point, Judge Leary and I would like to thank the commenters for their participation. As always, we also thank Chair Christian for being present and participating. And we'd like to thank Mr. White, Joseph White, and Sangeetha Kailas from our consumer services office for administering this session as well as our court reporter. And with that, our hearing is concluded and we are going to go off the record.

THE REPORTER: We are off the record.

(The hearing concluded at 2:29 p.m.)

STATE OF NEW YORK

I, ANTHONY MCCLAIN, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 70, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 9th day of August, 2023.

ANTHONY MCCLAIN, Reporter